

Transparency Report under the Communication Platforms Act (KoPI-G)

The Communication Platforms Act (KoPI-G), which entered into force on January 1, 2021, is an Austrian law that sets requirements for how the providers of communication platforms have to handle complaints about illegal textual content.

The biannual report provides data consistent with § 4 KoPI-G, including information about YouTube's organization and procedures, the volume of complaints received under the law, and the volume of removed content pursuant to the law.

Transparency Report under the Communication Platforms Act (KoPI-G)

The Communication Platforms Act (KoPI-G), which entered into force on January 1, 2021, is an Austrian law that sets requirements for how the providers of communication platforms have to handle complaints about illegal textual content (§ 2(8) KoPI-G). It also sets out requirements for communication platforms with more than one million registered users to publish a transparency report on a biannual basis. The full language of the law can be found [here](#). Because the law is limited to textual content, such as comments, it is not applicable to video content (§ 1(4) KoPI-G).

This voluntary report provides data consistent with § 4 KoPI-G, including information about YouTube's organization and procedures, the volume of complaints received under the law, and the volume of removed content pursuant to the law. The report also provides general information about our removal practices and policies. We update this report for the reporting periods January to June, and July to December of each year. The default downloadable report available here covers the previous reporting period. Data for previous reporting periods can be downloaded via the transparency report [PDF Download Center](#).

Removing content from YouTube based on the Communication Platforms Act (KoPI-G)

The Communication Platforms Act (KoPI-G) requires communication platforms, unless in the previous calendar year, they had both, less than 100.000 registered users in Austria as well as a profit of less than 500.000 Euro, to exercise a local take down of "obviously illegal" comments within 24 hours after notification. Where the (il)legality is not obvious, the provider has up to seven days to decide on the case. To qualify for a removal under KoPI-G, comments need to fall under one of the criminal statutes in the Austrian Criminal Code (StGB) to which KoPI-G refers (§ 2 Nr. 8 KoPI-G).

In addition, KoPI-G requires communication platforms to create and publish a report about the handling of such complaints (transparency report) on a biannual basis.

General remarks on how we deal with allegedly illegal content

Today, over five hundred hours of video are uploaded to YouTube every minute, making it one of the largest living collections of human culture ever assembled in one place: a community where people all over the world can create and share ideas and opinions. To support the safety of our community, we have [Community Guidelines](#) that prohibit certain types of content on the platform, including hate speech, harassment and cyberbullying, nudity and sexual content, and violent criminal organizations. If content violates our Community Guidelines, we will remove it globally. While our Community Guidelines are distinct from local laws, they do provide coverage for a substantial amount of harmful content that may be considered illegal, such as violent extremism and Child Sexual Abuse Material (CSAM).

When we receive complaints to remove allegedly illegal content, we review the complaint carefully. If the content is in violation of local laws, we will locally block the content identified as illegal. This is the same approach we take with any other legal requests for content removal. As we detail in this report, deciding whether content is illegal under local laws can be among the more difficult legal assessment decisions YouTube reviewers have to make.

YouTube's efforts to build an engaging online global community cannot succeed without the efforts of a cross-functional team, including policy specialists, lawyers, engineers, product managers, data analysts, content reviewers, operations analysts, emerging threat analysts and many others. In addition, inputs from the global community of users, NGOs, governments and industry partners—including other technology companies—play an important role in shaping YouTube as a platform that works for users and creators all across the globe. We also have a Trusted Flagger program through which NGOs and government agencies who are particularly effective at identifying certain types of harmful content have access to more sophisticated reporting processes and prioritized review of flags. In Austria, the Federal Ministry of the Interior (BMI) and Zara are Trusted Flaggers.

Using a "people + machine" framework, YouTube has made substantial progress enforcing our guidelines, and we report information about our global removals in our quarterly [YouTube Community Guidelines Enforcement report](#). For example, from July to September 2022, YouTube removed 737.512.355 comments globally – an overwhelming majority of those were first detected by our automated flagging systems (99% in that same period of 2022). Humans may also flag comments, and creators have the ability to moderate comments on their own videos. Automated flagging is an important tool that enables us to more quickly and accurately enforce our policies at scale, in many cases even before the problematic content could have been accessed by our users.

Mechanisms, notification, reporting methods, and evaluation

YouTube is guided by "Four Freedoms" —freedom of expression, freedom of information, freedom of opportunity, and freedom to belong. Enforcing our Community Guidelines and respecting local laws is part of balancing these freedoms and preserving YouTube's global community. For users in Austria, YouTube offers a legal webform that can be accessed by logged-in and logged-out users via the help center article dedicated to KopI-G.

[Legal webform](#) | [Help center article](#)

Methods of reporting

As YouTube has grown and technology has advanced, the systems powering the platform have evolved too, including those that flag content for human review. Today's content review system uses new technological developments to detect content that may violate our policies. Below is an overview of the mechanisms Google employs as well as the various ways content is notified to YouTube, such as automated flagging, Community Guideline flagging, or legal complaints.

Automated matching by machine

YouTube's enforcement system starts from the point at which a user uploads a video. YouTube utilizes technology to prevent re-uploads of known violative content, including through the use of hashes (or "digital fingerprints"). Hashes are unique digital fingerprints for images and videos and they help us prevent re-uploads of exact matches to videos removed for Community Guidelines violations. For some content, like CSAM and terrorist recruitment videos, YouTube also uses a shared industry database of hashes to increase the volume of content our machines can catch at upload.

Automated flagging by machine

In June 2017, we began to deploy machine learning technology to flag violent extremist content for human review and have since expanded to cover our other policy areas like child safety and hate speech. YouTube uses the corpus of videos already reviewed and removed to train machine learning technology to flag new content that might also violate the Community Guidelines. Using machine learning technology trained by human decisions means the enforcement systems adapt and get smarter over time. However, we find that these systems are most effective when there is a clearly defined target that is violative in any context. Machine automation simply cannot replace human judgment and nuance. To learn more, please visit our [YouTube Community Guidelines enforcement report](#).

Human flagging

We have a flagging system that enables logged-in users to alert us to content that potentially violates our Community Guidelines. This flagging system is accessible under each video and next to each comment. The user can choose from different content categories to select the reason they are reporting the content. These flags are assessed purely based on our Community Guidelines. This is a voluntary self-regulatory system that exists separate from any legal obligation. We have also developed a program called "Trusted Flagger" to help encourage simultaneous submissions of multiple high-quality flags about content that potentially violates our Community Guidelines. Flags from Trusted Flaggers are assessed purely based on our Community Guidelines.

Mechanisms for submitting complaints about allegedly illegal content according to KoPI-G

Legal complaints

YouTube offers a [legal webform](#) for users to report content that they believe violates relevant national laws in their country. Users may use this [webform](#) to report objectionable textual content that they believe violates the Communication Platforms Act (KoPI-G).

The webform is available on the YouTube [Legal policies page](#), and in the KoPI-G [help center article](#) overviewing this regulation. This reporting channel enables users to identify the objectionable textual content and provide a reason for the legal complaint. This information is necessary for us to conduct a proper review so that we can take appropriate action. If there is an unclear rationale or insufficient justification for a legal removal, we may ask the submitter to supply additional information. We explain the process in the [help center article](#).

The screenshot shows the YouTube Help Center interface. At the top, there's a navigation bar with 'Help Center' and 'Community'. Below it, a horizontal menu lists various topics: 'Fix a problem', 'Watch videos', 'Manage your account & settings', 'Supervised experience on YouTube', 'Join & manage YouTube Premium', and 'Create & grow your channel'. The main content area is titled 'Text Based Legal Complaints from Austria under Communication Platforms Act (KoPI-G)'. It includes an introduction to the KoPI-G law, a list of offenses covered by the law (such as Coercion, Criminally Dangerous Threats, Persistent Persecution, etc.), and a note about the 'Other Legal webform'. A sidebar on the right lists 'Legal policies' with links to Trademark, Counterfeit, Defamation, Other legal issues, Stored music policy, Other legal complaints, and the current article.

Text Based Legal Complaints from Austria under Communication Platforms Act (KoPI-G)

The Communication Platforms Act (KoPI-G) is an Austrian law that sets requirements for how social networks have to handle complaints about unlawful content (see § 2(2)(8) KoPI-G). The full language of the law can be found [here](#). The law is not applicable on videos, only on textual content, such as comments.

Our [Other Legal webform](#) is a dedicated resource where users can report content that they believe violates relevant national laws in their country. You may use this [webform](#) to report possible violations according to the Communication Platforms Act (KoPI-G). For example:

- Coercion (§ 105 StGB)
- Criminally Dangerous Threats (§ 107 StGB)
- Persistent Persecution (§ 107a StGB)
- Persistent Harassment by means of a Telecommunication (§ 107c StGB)
- Accusation of a criminal offence which has already been dismissed by the court (§ 113 StGB)
- Insult (§ 120a StGB)
- Extortion (§ 144 StGB)
- Vilification of religious teachings (§ 207a StGB)
- Initiation of sexual contact with minors (§ 208a StGB)
- Terrorist Association (§ 278b StGB)
- Incitement to commit terrorist offences and endorsement of terrorist offences (§ 282a StGB)
- Incitement to (§ 283 StGB)
- § 3d, § 3g or § 3h of the Prohibition Act

The [webform](#) is also available to users via the "three-point menu" on the right under each video, via the selection "Report", "Violates my rights" and under "Other legal problem".

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Legal policies

- Trademark
- Counterfeit
- Defamation
- Other legal issues
- Stored music policy
- Other legal complaints
- Text Based Legal Complaints from Austria under Communication Platforms Act (KoPI-G)**

The [webform](#) is also available to users via the "three-point menu" on the right under each video, via the selection "Report", "Violates my rights" and under "Other legal problem".

Apart from the mechanisms to file KoPI-G complaints, we have provided legal webforms to YouTube users (e.g., for personality rights complaints, copyright complaints, trademarks complaints, etc.) for many years prior to KoPI-G.

Process for evaluation

Community Guideline flagging

YouTube's globally applicable [Community Guidelines](#) are clear, high-level rules. These guidelines have evolved over time as YouTube has grown and user behavior has changed. Users consent to adhere to these guidelines before opening a YouTube channel.

YouTube also maintains a more detailed and living set of enforcement guidelines that provide internal guidance on the enforcement of the public Community Guidelines. These enforcement guidelines are extensive and dynamic to ensure that the policies apply to changing trends and new patterns of controversial content online. For example, the Community Guidelines prohibit content that promotes terrorism. If a terrorist group creates a new branch, the internal enforcement guidelines may be updated with information about that specific group so reviewers have the guidance needed to remove content promoting that group. YouTube does not always disclose these kinds of updates to the public because doing so would make it easier for unscrupulous users to evade detection.

The review teams are able to see the surrounding context during their review of reported content including the video description, other content uploaded to the channel, and metadata (titles, tags or captions).

We have carved out exceptions to the Community Guidelines for material that is Educational, Documentary, Scientific, and/or Artistic (EDSA). Comments that fall under those exceptions are crucial to understanding the world and to chronicling history, whether it is documenting wars and revolutions, or artistic expression that may include nudity. Because of this, YouTube's enforcement guidelines take great care in helping reviewers understand the EDSA exceptions when reviewing flagged comments. However, even with well articulated guidelines, determining what comments are subject to EDSA exceptions can be among the more difficult policy enforcement decisions YouTube reviewers have to make.

Legal complaints

When we receive a legal request (including under KoPI-G), our review teams will perform a legal review based on the information in the request, including the objection raised by the submitter. In addition, they will also see the surrounding context of the reported content (e.g., metadata, title, etc.). If important information is missing from a request—for example, the identity of a person in a defamation complaint—the team will contact the submitter for further information that is necessary for the legal assessment. If we identify the content as illegal, we locally block the content.

KoPI-G complaints

When we receive a KoPI-G request, our specialized KoPI-G review team (see section Review Teams), that sees the surrounding context of the reported comment, will assess the content against one or more of the criminal offenses KoPI-G refers to (§ 2(8) KoPI-G). In case of a violation, the comment gets removed.

For KoPI-G requests, we have a team working in shifts, seven days a week, 365 days a year to allow for a removal as applicable within the time limits of the KoPI-G. If a complaint is obviously unfounded, the requester is immediately notified. If the reported comment does not obviously violate the relevant criminal statutes, the comment is otherwise complex or does not obviously relate to Austria, the responsible KoPI-G content reviewer has to escalate the complaint to the next level for prompt review with the appropriate action then taken by senior content reviewers. Complex requests are passed on to the YouTube legal team who, if in doubt, further escalate difficult and edgy cases to members of the legal department of Google Austria, who in turn have the option to escalate particularly difficult cases to an external law firm that is specialized in criminal law. This process usually takes up to 7 days.

To ensure that the KoPI-G team is operating as intended and is applying YouTube's Community Guidelines and the criminal offenses under KoPI-G correctly and consistently, we have implemented a rigid quality assessment process.

Reported and removed items

Reported items

This data includes only complaints that concern non-audiovisual content (comments) alleged to be illegal within the meaning of KoPI-G (not however complaints received through reporting channels, which clearly do not lead to an assessment according to the KoPI-G such as the Community Guidelines flows as described above).

The term complaint refers to single items in this transparency report. If several items (e.g., several comments) are subject to a legal notice, we count one complaint per item. For example, if we receive a legal notice containing three different comments, we count three complaints respectively, that means one complaint per item reported. The charts below provide data on the number of complaints regarding the items filed during the 6-month reporting period.

July 2022 - Dec 2022

Total reported items

1

Removed items

The data shows the number of items that were removed in the reporting period. Looking at the above listed data, it becomes clear that the KoPI-G and its new content regulatory regime does not provide the desired added value for users. The KoPI-G webform for Austrian users to report allegedly illegal content is de facto not used as the systems we have already established are well-proven and users have become familiar with them. YouTube's measures taken under the Community Guidelines put in place long before the enactment of KoPI-G are of convincing effectiveness.

As noted above, from July to September 2022, YouTube removed 737.512.355 comments globally. Most removed comments are detected by our automated flagging systems (99%) but they can also be flagged by human flaggers.

Offering unified reporting possibilities for our users globally is YouTube's priority. This allows us to act fast and on a large scale (e.g., identifying and combating large spam operations). Requiring market-specific reporting flows, policies, and processes creates fragmentation that limits our ability to effectively enforce our policies at scale, and creates challenges in terms of user expectations.

When it comes to moderation of comments, we use a combination of people and technology to remove comments that violate our [Community Guidelines](#), but given the fact that comments are directly connected to a creator's primary video content, we give creators a significant amount of control over comments on their videos. They can choose to hold comments for creator review and approval when those comments fit certain criteria (e.g., match words/phrases on the creator's blocked words list, contain hashtags or URLs identified by our systems as potentially inappropriate) or even disable comments on individual videos or across videos on their whole channel. In addition, several of our products feature no comments at all, including supervised experiences (aimed at parents and children under 14), videos featuring minors, and YouTube Kids.

July 2022 - Dec 2022

Total removed items

1

Review teams

Review teams

Although technology has become very helpful in identifying some kinds of controversial content—e.g., finding objects and patterns quickly and at scale in images, video, and audio—humans are best at assessing context. For example, algorithms cannot always tell the difference between terrorist propaganda and human rights footage or hate speech and provocative comedy. People are often needed to make the final call.

Review of Community Guideline flags and other notices are conducted by our technological systems in conjunction with YouTube employees and hired vendors. We have a robust quality review framework in place to make sure our global staff are consistently making the right decisions on reported content, and receive regular feedback on their performance. Our review teams consist of thousands of people, fluent in multiple languages, who carefully evaluate flags 24 hours a day, seven days a week, 365 days a year in time zones around the world. These teams have multiple German speakers.

Some members of the teams working on legal complaints are German-speaking legal specialists with a law degree. These specialists, all trained in local laws, confer with local Google counsel. Google employs a large legal team of legal counsel located in many European countries. They are involved as needed in the legal analysis of content reported to us, and teams may seek additional legal advice from local outside counsel.

KoPI-G team

For KoPI-G requests we have built up a specialized team at an external service provider. In the reporting period, five KoPI-G team members were trained to work on KoPI-G requests.

In order to ensure cultural diversity, our reviewers have different professional backgrounds and speak different languages. All KoPI-G team members speak fluent German; some of them are native German speakers.

All KoPI-G team members also speak English; KoPI-G team members speak one or more of the following languages: Ukrainian, Russian, Polish, Spanish, French, Italian. This proves to be useful in assessing a potential link to Austria in a foreign language. In the reporting period all 5 KoPI-G team members have a University degree, such as a Bachelor, a Master in fields such as business administration, linguistics, computer science or teaching. Everyone from the team has acquired a previous professional experience in one or more of the following fields: teaching (50% of the team has a teaching/tutoring background), translating, customer service, IT, insurance, finance, data science, marketing or administration.

Each KoPI-G team member receives general onboarding training on all of YouTube's processes, our technical systems, as well as legal training on the criminal offenses under KoPI-G. In addition to the onboarding training, we deliver legal KoPI-G refresher training on a regular basis. The training addresses current developments, trends and new case law. The KoPI-G Team prioritizes all complaints from Austria, however, when there are no complaints, the team works in other YouTube Legal workflows.

Robust wellbeing programs and psychological support are offered for the KoPI-G team members. The team has access to 24/7 counseling via a support hotline. We also provide facilities that support wellness, including breakout spaces and dedicated private space for individual counseling sessions. This is consistent with the wellbeing program we provide for all review teams across YouTube.